

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #09	CCRB Case #: 202205775	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/25/2022 4:30 PM, Monday, 08/29/2022 7:10 PM, Wednesday, 08/31/2022 7:09 AM	Location of Incident: Southeast corner of § 87(2)(b) and § 87(2)(b) Northeast corner of § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 2/29/2024	Precinct: 67		
Date/Time CV Reported Wed, 08/31/2022 8:37 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 08/31/2022 8:37 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 David Hudgens	07823	952864	WARRSEC
2. PO James Moussa	31415	963664	WARRSEC
3. An officer			
4. SGT John Filippi	02858	948966	WARRSEC
5. DT3 Aman Rana	04944	956191	WARRSEC
6. SGT DS Lawrence Bettex	04846	893558	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . SGT John Filippi	Abuse: On August 25, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi stopped § 87(2)(b)	A . Unfounded
B . PO James Moussa	Abuse: On August 25, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Police Officer James Moussa stopped § 87(2)(b)	B . Unfounded
C . DT3 David Hudgens	Abuse: On August 25, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Detective David Hudgens stopped § 87(2)(b)	C . Unfounded
D . PO James Moussa	Abuse: On August 29, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Police Officer James Moussa stopped § 87(2)(b)	D . Unable to Determine
E . SGT DS Lawrence Bettex	Abuse: On August 29, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant Lawrence Bettex stopped § 87(2)(b)	E . Unable to Determine
F . DT3 Aman Rana	Abuse: On August 29, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Detective Aman Rana stopped § 87(2)(b)	F . Unable to Determine
G . An officer	Abuse: On August 29, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, an officer threatened to arrest § 87(2)(b)	G . Unable to Determine
H . SGT DS Lawrence Bettex	Abuse: On August 29, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant Lawrence Bettex failed to provide § 87(2)(b) with a business card.	H . Unable to Determine

Officer(s)	Allegation	Investigator Recommendation
I . PO James Moussa	Abuse: On August 29, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Police Officer James Moussa failed to provide § 87(2)(b) with a business card.	I . Unable to Determine
J . DT3 Aman Rana	Abuse: On August 29, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Detective Aman Rana failed to provide § 87(2)(b) with a business card.	J . Unable to Determine
K . PO James Moussa	Abuse: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Police Officer James Moussa stopped § 87(2)(b)	K . Within NYPD Guidelines
L . SGT John Filippi	Abuse: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi stopped § 87(2)(b)	L . Within NYPD Guidelines
M . DT3 David Hudgens	Abuse: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Detective David Hudgens stopped § 87(2)(b)	M . Within NYPD Guidelines
N . SGT John Filippi	Abuse: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi threatened to arrest § 87(2)(b)	N . Within NYPD Guidelines
O . SGT John Filippi	Abuse: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi refused to provide his shield number to § 87(2)(b)	O . Unable to Determine
P . SGT John Filippi	Abuse: On August 31, 2022, at at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi refused to provide his name to § 87(2)(b)	P . Unable to Determine
Q . SGT John Filippi	Abuse: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi failed to provide § 87(2)(b) with a business card.	Q . Substantiated
§ 87(4-b), § 87(2)(g)		

Case Summary

On August 31, 2022, § 87(2)(b) filed this complaint over the phone with the CCRB on his own behalf.

On August 25, 2022, at approximately 4:30 P.M., Sgt. John Filippi, PO James Moussa, and Det. David Hudgens, all assigned to the Warrant Squad, allegedly stopped § 87(2)(b) on the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn (**Allegations A, B, and C, Abuse of Authority: Unfounded**).

On August 29, 2022, at approximately 7:10 P.M., PO James Moussa, as well as Sgt. Lawrence Bettex and Det. Aman Rana, both also assigned to the Warrant Squad, allegedly stopped § 87(2)(b) on the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn (**Allegations D, E, and F, Abuse of Authority: Unable to Determine**). An officer allegedly threatened to arrest § 87(2)(b) (**Allegation G, Abuse of Authority: Unable to Determine**). Sgt. Bettex, PO Moussa, and Det. Rana allegedly failed to provide § 87(2)(b) with business cards (**Allegations H, I, and J, Abuse of Authority: Unable to Determine**).

On August 31, 2022, PO Moussa, Sgt. Filippi, and Det. Hudgens stopped § 87(2)(b) (**Allegations K, L, and M, Abuse of Authority: Within NYPD Guidelines**). Sgt. Filippi threatened to arrest § 87(2)(b) (**Allegation N, Abuse of Authority: Within NYPD Guidelines**). Sgt. Filippi allegedly refused to provide his shield number and name to § 87(2)(b) (**Allegations O and P, Abuse of Authority: Unable to Determine**) and failed to provide him with a business card (**Allegation Q, Abuse of Authority: Substantiated**). § 87(4-b), § 87(2)(g)

No summonses were issued and no arrests were made in relation to these incidents.

The investigation obtained Argus surveillance footage showing the incident location for the August 25 and August 31, 2022, incident dates (**01-02 Board Review**). Argus footage was not obtained for the August 29, 2022, incident date because the incident time was not identified until after footage was expired. The officers in this case were not assigned body-worn cameras (BWCs) and so there is no BWC footage in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: On August 25, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi stopped § 87(2)(b)
Allegation (B) Abuse of Authority: On August 25, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Police Officer James Moussa stopped § 87(2)(b)
Allegation (C) Abuse of Authority: On August 25, 2022, at the southeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Detective David Hudgens stopped § 87(2)(b)

§ 87(2)(b) testified that on August 25, 2022, between 4 P.M. and 4:30 P.M., he was seated on a bench on the southeast corner of § 87(2)(b) and § 87(2)(b) when an unmarked Dodge minivan stopped in front of him (**03 Board Review**). PO Moussa, Det. Hudgens, and Sgt. Filippi exited and stood in a semicircle around him. PO Moussa asked for his name and ID and § 87(2)(b) provided them. Det. Hudgens stated, “It’s not him,” and the officers left.

Sgt. Filippi and PO Moussa testified that they were not at the incident location on August 25, 2022 but rather were executing an unrelated search warrant (**04-05 Board Review**). They did not stop § 87(2)(b) that day.

The investigation obtained Argus surveillance footage for the incident time showing the incident location (**01 Board Review**). At no point in the footage does § 87(2)(b) the officers, or the unmarked minivan appear.

The Brooklyn Warrants South movement log shows that Sgt. Filippi and PO Moussa were assigned to vehicle § 87(2)(b), an unmarked Dodge minivan, and were executing a search warrant at a

location 3.5 miles away from the alleged incident location **(06 Board Review)**. At no point that day was Det. Hudgens assigned to that or any vehicle. Det. Hudgens's memo book does not contain any entries for the incident time **(07 Board Review)**. Sgt. Filippi and PO Moussa's memo books show that at the incident time, they were working on an unrelated search warrant and moved between the search warrant location and Kings County Court **(07-08 Board Review)**. The corner of § 87(2)(b) and § 87(2)(b) is not along the route between the courts and the search warrant location. AVL logs for vehicle 5927 were unavailable **(09 Board Review)**. Requests for stop reports and warrant checks for § 87(2)(b) returned negative results **(10, 07 Board Review)**.

§ 87(2)(g)

It is therefore recommended that **Allegation A, B, and C** be closed as **Unfounded**.

Allegation (D) Abuse of Authority: On August 29, 2022, at the southeast corner of § 87(2)(b)

and § 87(2)(b) in Brooklyn, Police Officer James Moussa stopped § 87(2)(b)

Allegation (E) Abuse of Authority: On August 29, 2022, at the southeast corner of § 87(2)(b)

and § 87(2)(b) in Brooklyn, Sergeant Lawrence Bettex stopped § 87(2)(b)

Allegation (F) Abuse of Authority: On August 29, 2022, at the southeast corner of § 87(2)(b)

and § 87(2)(b) in Brooklyn, Detective Aman Rana stopped § 87(2)(b)

Allegation (G) Abuse of Authority: On August 29, 2022, at the southeast corner of § 87(2)(b)

and § 87(2)(b) in Brooklyn, an officer threatened to arrest § 87(2)(b)

Allegation (H) Abuse of Authority: On August 29, 2022, at the southeast corner of § 87(2)(b)

and § 87(2)(b) in Brooklyn, Sergeant Lawrence Bettex failed to provide § 87(2)(b)

with a business card.

Allegation (I) Abuse of Authority: On August 29, 2022, at the southeast corner of § 87(2)(b)

and § 87(2)(b) in Brooklyn, Police Officer James Moussa failed to provide § 87(2)(b)

with a business card.

Allegation (J) Abuse of Authority: On August 29, 2022, at the southeast corner of § 87(2)(b)

and § 87(2)(b) in Brooklyn, Detective Aman Rana failed to provide § 87(2)(b)

with a business card.

It is undisputed that on August 29, 2022, between approximately 7:10 P.M. and 7:23 P.M., Sgt. Bettex, PO Moussa, and Det. Rana were at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn in relation to a probable cause to arrest I-card #§ 87(2)(b) for § 87(2)(b) who was known to frequent that area. The investigation into § 87(2)(b) was assigned to PO Moussa.

§ 87(2)(b) testified that he was seated on a bench on the southeast corner of § 87(2)(b) and § 87(2)(b) when the same unmarked minivan he saw on August 25, 2022 pulled up and three officers got out **(03 Board Review)**. The officers stood in a semicircle around him and PO Moussa was holding a photo of § 87(2)(b) who § 87(2)(b) knew. When an officer asked for § 87(2)(b)'s name, he stated that he would not provide it because he showed them his ID a few days prior. An officer said that they could arrest § 87(2)(b) for not providing his ID and "interrupting" an investigation. § 87(2)(b) then showed his ID, after which the officer left without providing business cards.

PO Moussa's DD5 for the incident date states that from 7:10 P.M. to 7:23 P.M., he was at the corner to conduct surveillance for the open I-card and did not see § 87(2)(b) **(11 Board Review)**.

PO Moussa's, Sgt. Bettex's, and Det. Rana's statements were consistent with PO Moussa's DD5 **(05, 12, 13 Board Review)**. They did not stop or threaten to arrest § 87(2)(b) while at the location.

Requests for warrant audits or stop reports for § 87(2)(b) on August 29, 2022 returned negative results **(07, 23 Board Review)**.

§ 87(2)(g)

It is therefore recommended that **Allegations D, E, F, G, H, I, and J** be closed as **Unable to Determine**.

Allegation (K) Abuse of Authority: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Police Officer James Moussa stopped § 87(2)(b)

Allegation (L) Abuse of Authority: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi stopped § 87(2)(b)

Allegation (M) Abuse of Authority: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Detective David Hudgens stopped § 87(2)(b)

Allegation (N) Abuse of Authority: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi threatened to arrest § 87(2)(b)

It is undisputed that on August 31, 2022, at approximately 7:09 A.M., Sgt. Filippi, PO Moussa, and Det. Hudgens stopped § 87(2)(b) at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn in relation to probable cause to arrest I-card #§ 87(2)(b) for § 87(2)(b). PO Moussa was holding a photograph of § 87(2)(b) § 87(2)(b) initially refused to provide his ID at the officers' request and Sgt. Filippi threatened to arrest him. Ultimately, § 87(2)(b) provided his ID and the officers allowed him to leave without issuing any summonses or effecting any arrests.

§ 87(2)(b) testified that he was seated outside the deli when the same minivan he saw on August 25 and 29, 2022 pulled up and Sgt. Filippi, PO Moussa, and Det. Hudgens approached him **(03 Board Review)**. § 87(2)(b) recognized the photo of § 87(2)(b) as someone who frequented that corner. When § 87(2)(b) initially refused to provide his name or ID, he told the officers that he had shown them his ID twice already and that he did not look like the individual in the photo PO Moussa was holding. The officers stated that he did. After Sgt. Filippi threatened to arrest § 87(2)(b) for "interrupting" an investigation, § 87(2)(b) provided his ID. § 87(2)(b) described himself as a § 87(2)(b), § 87(2)(b) black male with black hair cut low, dark eyes, and a moustache. § 87(2)(b) is two inches taller than § 87(2)(b) wears his hair medium length rather than short, and has a goatee.

Sgt. Filippi and PO Moussa testified that they were surveilling the corner because § 87(2)(b) was known to frequent it **(04-05 Board Review)**. All officers all agreed to stop § 87(2)(b) believing he was § 87(2)(b). The officers told § 87(2)(b) that he resembled a wanted subject and asked for his ID. § 87(2)(b) refused to provide his ID and said he did not look like § 87(2)(b). Officers could have arrested § 87(2)(b) because they believed he was § 87(2)(b) for whom there was a probable cause to arrest I-card. If the officers brought § 87(2)(b) to the stationhouse and found he was not § 87(2)(b) they would have generated a voided arrest. For this reason, Sgt. Filippi told § 87(2)(b) that if he did not provide his ID, they would take him to the stationhouse until they could verify who he was. No officer threatened to arrest § 87(2)(b) for any other reason. Once § 87(2)(b) produced an ID showing his name, he was free to leave. § 87(2)(b) did not say anything about officers having stopped him on prior dates.

Sgt. Filippi testified that he did not independently recall why he believed § 87(2)(b) resembled § 87(2)(b) **(04 Board Review)**. After viewing § 87(2)(b)'s photographs **(14 Board Review)** and the I-card for § 87(2)(b) **(15 Board Review)**, Sgt. Filippi stated § 87(2)(b) and § 87(2)(b) resemble each other because they both have very broad noses and similarly shaped lips.

PO Moussa stated that § 87(2)(b)'s face is like § 87(2)(b) but was unable to articulate specific ways in which this was the case **(05 Board Review)**.

§ 87(2)(b) provided two photos of himself to the investigation **(14 Board Review)**. The photos show he is a black male with short graying black hair, small eyes, a broad nose, and large lips.

An arrest photo from March 2, 2023 shows that § 87(2)(b) is a § 87(2)(b), § 87(2)(b) black male with short graying black hair, small eyes, a broad nose, and large lips (**24 Board Review**).

Patrol Guide Procedure 212-11 states that officers may stop a civilian when they have individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or misdemeanor (**17 Board Review**). Such reasonable suspicion exists when the officer has a particularized and objective reason based on articulable specific facts for suspecting the person stopped of criminal activity.

According to Patrol Guide Procedure 208-01, officers may effect an arrest for a crime, whether committed within their presence or not, when they have reasonable cause to believe that the arrested person committed the crime (**25 Board Review**).

Patrol Guide Procedure 210-13 states that when an officer effects an arrest “and there is reasonable cause to believe the prisoner did not commit the offense, or any related offense, or it is determined that no offense has been committed, the member of service must immediately release the prisoner” and void the arrest (**19 Board Review**).

The investigation § 87(2)(g)

§ 87(2)(g) recommends that **Allegations K, L, and M** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

§ 87(2)(g) The investigation § 87(2)(g) recommends that **Allegation N** be closed as **Within NYPD Guidelines**.

Allegation (O) Abuse of Authority: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi refused to provide his name to § 87(2)(b)

Allegation (P) Abuse of Authority: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi refused to provide his shield number to § 87(2)(b)

Allegation (Q) Abuse of Authority: On August 31, 2022, at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant John Filippi failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that he asked all three officers for their names and shield numbers (**03 Board Review**). At the end of the incident, PO Moussa and Det. Hudgens provided § 87(2)(b) with their business cards, while Sgt. Filippi did not.

Sgt. Filippi testified that he was obliged to offer a business card to § 87(2)(b) but did not do so because he did not have any on him at the time (**04 Board Review**). He did not know what the procedure was if he did not have any business cards on him. Sgt. Filippi did not hear § 87(2)(b) ask for his identifying information and did not refuse to provide it to him.

PO Moussa did not recall hearing § 87(2)(b) verbally request any officer’s information (**05 Board Review**).

According to Patrol Guide Procedure 212-11, if an individual is not arrested at the conclusion of a stop, officers must offer them a business card (**17 Board Review**).

According to *New York City Administrative Code §14-174*, at the conclusion of a pedestrian stop that does not result in an arrest or summons, officers must offer a business card to the person who was stopped (**18 Board Review**). If the officer does not have pre-printed business cards with

them, they must provide a hand-written card. If the officer does not have hand-written cards either, they are to provide their information verbally, giving the person sufficient time to record the information. Additionally, officers are to offer business cards or verbally provide their information to any person requesting identifying information.

§ 87(2)(g)

It is therefore recommended that **Allegations O and P** be closed as **Unable to Determine**.

§ 87(2)(g)

It is therefore recommended that **Allegation Q** be closed as **Substantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**20 Board Review**).
- Sgt. Bettex has been a member of service for 35 years and has been a subject in seven additional CCRB complaints and 16 additional allegations, one of which was substantiated.
 - 9303271 involved a substantiated force allegation. The Board did not make recommendations.

§ 87(2)(g)

- Sgt. Filippi has been a member of service for 13 years and has been a subject in nine additional cases and 17 additional allegations, of which three were substantiated:
 - 202103714 involved substantiated seizure of property and vehicle search allegations. The Board recommended Command Discipline B and the NYPD did not impose any penalty.
 - 202106130 involved a substantiated gun pointed allegation. The Board recommended charges and the NYPD penalty is pending.

§ 87(2)(g)

- Det. Hudgens has been a member of service for 11 years and has been a subject in two additional cases and eight additional allegations, of which six were substantiated:
 - 201902845 involved substantiated allegations of entry of premises, search of premises, property damage, and discourteous language. The Board recommended charges and the NYPD penalty is pending.
 - 201906533 involved substantiated entry and search of premises allegations. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.

§ 87(2)(g)

- 201411370 involved a substantiated allegation regarding a summons he issued. The Board recommended formalized training and the NYPD imposed formalized training.

§ 87(2)(g)

- 201907825 involved a substantiated refusal to obtain medical treatment allegation. The Board recommended command-level instructions and the NYPD imposed formalized training.

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of May 31, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**21 Board Review**).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

(b) (7)(C), (b) (7)(D)

Squad: 9

Investigator:	<u>Rachel Adler</u>	<u>SI Rachel Adler</u>	<u>10/18/2023</u>
	Signature	Print Title & Name	Date

Squad Leader: _____

Signature Print Title & Name Date

10/18/2023

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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